

BOARDROOM-READY · PRIVACY, REGULATORY, COMPLIANCE · 2026

# Legal layouts.

Six anchors. Five variants per anchor. Pick the strongest of each row.

# Each anchor opens with a section divider, then walks five visual treatments of the same idea.

Mark the one that earns the room.

Slot labels lift via the slotLabelLift

transform — author writes `-`

`Federal`, not `-`

`<strong>Federal</strong>`. The

obligation matrix uses the universal

`[x]` `[-]` `[ ]` state grammar shared

with verdict-grid and checklist.

ANCHOR 01 · FEDERAL / STATE / LOCAL

# How does authority layer here?

# Children's data — three jurisdictions, three obligations.

## FEDERAL

15 U.S.C. §6501 · COPPA

Verifiable parental consent for under-13 personal data.

Operators must post a clear notice and a deletion route.

In effect since 2000

## STATE

Cal. Civ. Code §1798.120 · CCPA/CPRA

Opt-in for selling or sharing under-16 data; opt-out for over-16.

DSAR handling within 45 days; deletion verified.

Enforced 2023

## LOCAL

NYC Admin Code §22-1201

Bias-audit obligation for AEDTs used in employment decisions.

Annual audit + candidate notice + public summary.

Effective 2023

# Children's data — Federal floor, State stricter, Local narrowest.

## FEDERAL

15 U.S.C. §6501 · COPPA

Verifiable parental consent for under-13 personal data; nationwide floor.

## STATE

Cal. Civ. Code §1798.120 · CCPA/CPRA

Opt-in for selling under-16 data; California raises the floor for its residents.

## LOCAL

NYC Admin Code §22-1201

# Three jurisdictions, full prose, one row each.

FEDERAL

15 U.S.C. §6501 · COPPA

Verifiable parental consent for under-13 PI; deletion within reasonable period.

In effect since 2000

STATE

Cal. Civ. Code §1798.120 · CCPA/CPRA

Opt-in for selling or sharing under-16 data; 45-day DSAR response.

Enforced 2023

NYC Admin Code §22-1201

Annual bias-audit obligation for employment AEDTs; candidate

# Federal floor → State adds opt-in → Local adds audit duty.

## FEDERAL

15 U.S.C. §6501 · COPPA

Verifiable parental consent for under-13 PI; this is the floor.



## STATE

Cal. Civ. Code §1798.120 · CCPA/CPRA

California adds opt-in for sale or sharing of under-16 data.



## LOCAL

NYC §22-1201

New York City adds an annual AEDT bias-audit duty on top.

# Children's data — jurisdiction, citation, obligation, status.

| JURISDICTION | CITATION                 | HEADLINE OBLIGATION                    | STATUS         |
|--------------|--------------------------|----------------------------------------|----------------|
| FEDERAL      | 15 U.S.C. §6501          | Parental consent for under-13 data     | In effect 2000 |
| STATE        | Cal. Civ. Code §1798.120 | Opt-in for selling under-16 data       | Enforced 2023  |
| LOCAL        | NYC §22-1201             | Annual bias audit for employment AEDTs | Effective 2023 |

Pick this when the audience wants to scan many obligations at once.

ANCHOR 02 · QUOTE → TRANSLATE → ACT

**The verbatim regulation, in  
plain English, with the  
obligation.**

# What counts as "personal information" under CCPA.

*Cal. Civ. Code §1798.140(o) · CCPA/CPRA*

## KEY INSIGHT

*"Personal information" means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household.*

In plain English: any data tied to a household or device, not just a named person — IP addresses, cookie IDs, and device fingerprints are all in scope.

What we must do

Variant 2A · citation-card (stack, default)

Treat household-level identifiers as PI in our notice, retention, and DSAR

# What counts as "personal information" under CCPA.

Cal. Civ. Code §1798.140(o) · CCPA/CPRA

## KEY INSIGHT

*"Personal information" means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household.*

In plain English: any data tied to a household or device, not just a named person.

What we must do

Treat household-level identifiers as PI in notice, retention, and DSAR workflows.

# "Personal information" includes the household, not just the person.

*Cal. Civ. Code §1798.140(o) · CCPA/CPRA*

*Information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household.*

# Personal information, defined.

*Cal. Civ. Code §1798.140(o)*

## KEY INSIGHT

*Information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked with a particular consumer or household.*

Household IDs count.

Device fingerprints count.

Action

Audit pixels next quarter.

# Personal information — three columns, three jobs.

*Cal. Civ. Code §1798.140(o) · CCPA/CPRA*

## KEY INSIGHT

*Information that identifies, relates to, describes, or could reasonably be linked with a particular consumer or household.*

Plain English:  
household-level data is in scope, not just data tied to a named person. Device IDs, cookies, IP addresses all qualify.

Action  
Audit pixel inventory and update DSAR workflow to handle household-level identifiers within 45 days.

ANCHOR 03 · REGIMES × OBLIGATIONS

**Where every privacy regulator  
stands on every duty.**

# Privacy obligations across regimes — state grid.

| REGULATION | NOTICE                                                                                | CONSENT                                                                               | RETENTION                                                                             | BREACH                                                                                | DSAR                                                                                  |
|------------|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|
| GDPR       |    |    |    |    |    |
| CCPA/CPRA  |    |    |    |    |    |
| LGPD       |    |    |    |    |    |
| PIPEDA     |    |    |    |    |    |
| HIPAA      |   |   |   |   |   |
| GLBA       |  |  |  |  |  |

Filled · half · empty circles. Neutral ink — applies / partial / exempt as data.

# Privacy obligations across regimes — heat map.

| REGULATION | NOTICE                                                                                | CONSENT                                                                               | RETENTION                                                                             | BREACH                                                                                | DSAR                                                                                  |
|------------|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|
| GDPR       |    |    |    |    |    |
| CCPA/CPRA  |    |    |    |    |    |
| LGPD       |    |    |    |    |    |
| PIPEDA     |    |    |    |    |    |
| HIPAA      |   |   |   |   |   |
| GLBA       |  |  |  |  |  |

Same grammar, semantic palette — red = applies, amber = partial, green = exempt.

# Privacy obligations across regimes — same grammar, no heat.

| REGULATION | NOTICE                                                                              | CONSENT                                                                               | RETENTION                                                                             | BREACH                                                                                | DSAR                                                                                  |
|------------|-------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------|
| GDPR       |    |    |    |    |    |
| CCPA       |    |    |    |    |    |
| LGPD       |    |    |    |    |    |
| PIPEDA     |   |   |   |   |   |
| HIPAA      |  |  |  |  |  |
| GLBA       |  |  |  |  |  |

# Privacy obligations — categorical row stripes.

| REGULATION | NOTICE      | CONSENT     | RETENTION   | BREACH      | DSAR        |
|------------|-------------|-------------|-------------|-------------|-------------|
| GDPR       | <div></div> | <div></div> | <div></div> | <div></div> | <div></div> |
| CCPA/CPRA  | <div></div> | <div></div> | <div></div> | <div></div> | <div></div> |
| LGPD       | <div></div> | <div></div> | <div></div> | <div></div> | <div></div> |
| PIPEDA     | <div></div> | <div></div> | <div></div> | <div></div> | <div></div> |
| HIPAA      | <div></div> | <div></div> | <div></div> | <div></div> | <div></div> |
| GLBA       | <div></div> | <div></div> | <div></div> | <div></div> | <div></div> |

Lane stripes signal "this row is its own regime."

# Three regimes, three obligations, room to breathe.

|           |                                                          |                                                              |                                                          |
|-----------|----------------------------------------------------------|--------------------------------------------------------------|----------------------------------------------------------|
| GDPR      | Pre-collection; layered with purposes and legal basis    | Opt-in; explicit for special-category data                   | 30-day response; identity verification required          |
| CCPA/CPRA | At or before collection; "Notice at Collection" required | Opt-out default for sale/sharing; opt-in for under-16 minors | 45-day response; two free requests per consumer per year |
| LGPD      | Pre-collection; controller identity disclosed            | Opt-in for most processing; multiple legal bases recognised  | 15-day response; appeal route to the ANPD                |

Pick when each cell carries a sentence, not a glyph.

ANCHOR 04 · WHAT'S NEW

# The regulatory motion that closed this quarter.

# Privacy & AI motion — Q1 2026.

FEDERAL · STATE · INTERNATIONAL

01

**EU AI Act** Title III

Effective Feb 2026

Conformity-assessment pre-market obligation took effect.

02

**Colorado AI Act** SB 24-205

Effective Feb 2026

Developer + deployer duties for consequential-decision systems.

03

**FTC v. Avast** §5 unfairness

Final Mar 2026

\$16.5M consent order; clarifies the deception standard for privacy branding.

04

**Texas DPSA** §541.151

Effective Mar 2026

Variant 4A · regulatory-update(changelog, default)  
DSAR opt-out portal mandatory; small-business safe-harbor

# Privacy & AI motion — Q1 2026.

FEDERAL · STATE · INTERNATIONAL

01 **EU AI Act** Title III **Effective Feb 2026**

High-risk system  
conformity-  
assessment pre-  
market obligation  
took effect.

02 **Colorado AI Act** SB 24-205 **Effective Feb 2026**

Developer +  
deployer duties for  
consequential-  
decision systems.

03 **FTC Order** In re Avast **Final Mar 2026**

\$16.5M consent order;  
browser-history sale  
despite privacy

04 **Texas  
DPSA** Bus. & Com. Code §541.151 **Effective Mar 2026**

DSAR opt-out portal  
mandatory; safe-

# Privacy & AI motion — Q1 2026 timeline.

JANUARY → FEBRUARY → MARCH 2026

01

## PIPEDA Reform

C-27

Senate reading in January; commissioner powers expanded.

02

## EU AI Act

Title III

High-risk conformity-assessment obligation took effect 2 Feb.

03

## Colorado AI Act

SB 24-205

Developer + deployer duties effective 1 Feb.

04

## FTC v. Avast

§5

Consent order final 14 Mar; \$16.5M plus 20-year compliance program.

# Privacy & AI motion — Q1 2026 by kind of change.

ADDED · AMENDED · REPEALED · ENFORCED

ADDED

First conformity-assessment obligation took effect across the bloc.

**EU AI Act** Title III · high-risk systems

New developer + deployer duties for consequential-decision systems.

**Colorado AI Act** SB 24-205

AMENDED

Opt-out portal mandatory; small-business safe-harbor threshold narrowed.

**Texas DPSA** §541.151

# Privacy & AI motion — Q1 2026 priorities.

WHAT TO ACT ON, WHAT TO TRACK, WHAT TO LOG

**TIER 1**

**Act this quarter — EU AI Act**

Title III

High-risk conformity-assessment paperwork pre-market; engineering deadline before any EU launch.

**TIER 2**

**Track — Colorado AI Act**

SB 24-205

Developer + deployer duties; published deployer-notice template due in Q2.

**TIER 3**

**Log — FTC v. Avast**

§5

Consent order final; informs how the FTC frames the deception standard.

ANCHOR 05 · TEXTUAL DIFF

# What changed in the text we live by?

# SB-362 rewrote the opt-out link rule.

*Cal. Civ. Code §1798.135 · amendment SB-362 (2024)*

## KEY INSIGHT

A business that ~~collects~~ collects, sells, or shares consumers' personal information shall provide ~~two or more~~ at least one designated method for submitting requests to opt-out, including, at minimum, a clear and conspicuous link on the homepage titled "Your Privacy Choices," for use by consumers to ~~opt out of the sale of~~ direct the business not to sell or share their personal information.

**why this matters** SB-362 collapses "sale" and "sharing" into one duty and pins a uniform link title — homepage chrome and DSAR workflows both need a uniform UX.

# SB-362 rewrote the opt-out link rule — side-by-side.

*Cal. Civ. Code §1798.135 · before vs after*

## OLD

A business that **collects** consumers' personal information shall provide **two or more** designated methods for submitting requests to opt-out for use by consumers to **opt out of the sale of** their personal information.

## NEW

A business that **collects, sells, or shares** consumers' personal information shall provide **at least one** designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "**Your Privacy Choices,**" for use by consumers to **direct the business**

# SB-362 — annotated.

*Cal. Civ. Code §1798.135 · amendment SB-362*

## KEY INSIGHT

A business that ~~collects~~ collects, sells, or shares<sup>1</sup> consumers' personal information shall provide ~~two or more~~ at least one<sup>2</sup> designated method for submitting requests to opt-out, including a homepage link titled "Your Privacy Choices,"<sup>3</sup> for use by consumers to opt out.

- <sup>1</sup> **scope** Sale and sharing now both trigger the opt-out duty — even free programs are in.
- <sup>2</sup> **Floor** Two-channel minimum drops to one; a homepage link plus a portal is now sufficient.
- <sup>3</sup> **chrome** The literal link title is now mandated — uniform branding across the web.

# SB-362 — old block on top, new block below.

*Cal. Civ. Code §1798.135 · amendment SB-362*

## ~~OLD — PRIOR TEXT~~

~~A business that collects consumers' personal information shall provide two or more designated methods for submitting requests to opt out for use by consumers to opt out of the sale of their personal information.~~

## NEW · CURRENT

A business that collects, sells, or shares consumers' personal information shall provide at least one designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "Your Privacy Choices," for use by consumers to direct the business not to sell or share their personal information.

# SB-362 — old, new, and why it changed.

*Cal. Civ. Code §1798.135 · amendment SB-362*

## OLD

A business that collects consumers' personal information shall provide two or more designated methods for opt-out — to opt out of the sale of personal information.

## NEW

A business that collects, sells, or shares consumers' personal information shall provide at least one method, including a homepage link titled "Your Privacy Choices," to direct

## WHY

**Scope** Sale and sharing collapse into one duty — even free programs trigger the obligation.

**Floor** Two-channel minimum drops to one — a homepage link plus a portal now suffices.

**Chrome** The literal link title is now mandated — uniform branding.

ANCHOR 06 · STATUTE → REGULATION → GUIDANCE → CASE

**What actually binds us — and  
how far down the chain we are.**

# COPPA — the chain, tier by tier.

## STATUTE

15 U.S.C. §6501

Congress, 1998 — verifiable parental consent for under-13 data.

## REGULATION

16 C.F.R. Part 312

FTC implementing rule; 2013 rewrite expanded covered identifiers.

## GUIDANCE

FTC Six-Step Compliance Plan

Staff guidance — non-binding, but cited in every consent order.

# COPPA — authority weight, top binds, bottom illustrates.

## STATUTE

15 U.S.C. §6501

Congress, 1998. Binds nationwide.

## REGULATION

16 C.F.R. Part 312

FTC implementing rule, 2013 rewrite.

## GUIDANCE

FTC Six-Step Plan

Non-binding but cited.

# COPPA — one statute, many branches.

## STATUTE

15 U.S.C. §6501 COPPA, 1998

16 C.F.R. Part 312 — FTC implementing rule

FTC Six-Step Compliance Plan — staff guidance

In re Epic Games (2022) — \$245M consent order

In re YouTube/Google (2019) — \$170M consent order

# COPPA — bracketed tiers.

|            |                                                                                                 |
|------------|-------------------------------------------------------------------------------------------------|
| STATUTE    | <div>15 U.S.C. §6501</div> <div>Congress, 1998. The binding floor for under-13 data.</div>      |
| REGULATION | <div>16 C.F.R. Part 312</div> <div>FTC implementing rule; 2013 rewrite.</div>                   |
| GUIDANCE   | <div>FTC Six-Step Plan</div> <div>Staff guidance — quoted in every order.</div>                 |
| CASE       | <div>In re Epic Games</div> <div>\$245M consent order, 2022 — defines "actual knowledge."</div> |

# COPPA — four steps to the operative test.

|                                                             |                                                                   |                                                                |                                                                  |
|-------------------------------------------------------------|-------------------------------------------------------------------|----------------------------------------------------------------|------------------------------------------------------------------|
| <div>01</div> <div>STATUTE</div> <div>15 U.S.C. § 501</div> | <div>02</div> <div>REGULATION</div> <div>16 C.F.R. Part 312</div> | <div>03</div> <div>GUIDANCE</div> <div>FTC Six-Step Plan</div> | <div>04</div> <div>CASE</div> <div>In re Epic Games · 2022</div> |
|-------------------------------------------------------------|-------------------------------------------------------------------|----------------------------------------------------------------|------------------------------------------------------------------|

## What this deck delivers.

- 01 Six anchor layouts cover jurisdiction, quotation,
- 02 Five visual variants per anchor — the strongest of
- 03 Lean authoring: slot labels auto-lift,
- 04 Three-renderer parity: marp-cli, emulator, and
- 05 The other four variants per anchor can be deleted

**Mark the winners. The rest  
goes to the cutting room  
floor.**

*Lattice · Legal & regulatory · candidate deck*